

Former Nestle Factory

in the London Borough of Hillingdon

planning application no. 1331/APP/2019/2314

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Development of 922 residential units (totalling 1,479 units involving a net additional uplift of 93 units from that permitted by planning permission ref: 1331/APP/2017/1883), a basement extension to Block B, 232sqm (GEA) of flexible commercial use (A1/A3/A4/B1/D1/D2), amendments to Block B, C, F3, F4, H and associated landscaping, access, car parking and other engineering works.

The applicant

The applicants are **BDW Trading Limited (Barrat London)** and the architects are **Makower, DMFK, Cameo & Partners** and **David Bonnett Associates**.

Strategic issues summary

Principle: The optimisation of development in the Heathrow Opportunity Area is strongly supported by Policies 3.3 of the London Plan and H1 of the intend to publish London Plan. Efficient function, access, service arrangements and operation of the adjacent Industrial Land and high residential quality for the proposed population must be secured. (Paragraphs 16-22).

Housing: 922 residential units, 32% affordable housing by unit, split 29% Affordable Rent, 59% Shared Ownership and 12% Discount Market Sale (DMS).. An FVA has been submitted and GLA officers are robustly scrutinising the viability appraisal to ensure that the maximum amount of affordable housing is delivered. Early and late stage review mechanisms must also be secured. (Paragraphs 23-35).

Urban design: Scheme proposes changes to the height and massing of various blocks across the site, and no changes to the overall site layout since the previously approved masterplan. Height, massing and layout are supported, subject to confirmation the number of dual aspect units has been maximised. (Paragraphs 36-40).

Sustainable Development: Further revisions and information are required before the proposals can be considered acceptable to comply with Policies 5.2 and 5.13 of the London Plan as well as Policies SI2 and SI13 of the draft London Plan. (Paragraphs 41-47).

Transport: Proposed cycle parking must be amended to comply with the London Cycle Design Standards (LCDS). the level of car parking should be reduced in line with Policy T6 of the intend to publish London Plan. Amended Transport Assessment, Delivery and Servicing plans should be provided and secured by conditions and s106 agreement obligations. (Paragraphs 48-53).

Recommendation

That Hillingdon Council be advised that the scheme does not currently comply with the London Plan for the reasons set out in paragraph 59 of this report, but that the possible remedies set out in that paragraph could address these deficiencies.

Context

1 On 12 September 2019, the Mayor of London received documents from Hillingdon Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008, the Mayor will provide the Council with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Categories 1A, 1B and 1C of the Schedule to the 2008 Order:

- *1A: "Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats".*
- *1B(1.c): "Development (other than development which only comprises the provision of houses, flats, or houses and flats) which comprises or includes the erection of a building or buildings outside Central London and with a total floorspace more than 15,000 square metres".*
- *1C(1.c): "Development which comprises or includes the erection of a building, where the building is more than 30 metres high and is outside the City of London."*

3 Once Hillingdon Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; take it over for his own determination; or allow the Council to determine it itself.

4 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

5 The former Nestle factory site is situated within the Heathrow Opportunity Area. The site comprises 12 hectares of land bound by Nestles Avenue and interwar suburban housing to the south, North Hyde Gardens and an electricity substation to the east, the Grand Union Canal and Great West Railway line to the north, and a series of light industrial buildings to the west.

6 The site is designated as the Botwell Nestle Conservation Area and is occupied by a number of Locally Listed Buildings comprising the main factory building (Truscon building and Sandow building), a canteen building, a lodge, gates and railings along Nestles Avenue. There are also a number of mature Conservation Area trees at the site, mainly distributed along the southern frontage.

7 The site is generally well served by public transport being approximately 600 metres from Hayes and Harlington rail station which will benefit from future Elizabeth Line services. Overall the site registers a public transport access level (PTAL) of one(b) to four, on a scale of zero to six(b), where six(b) denotes the most accessible locations in the capital.

Details of the proposal

8 The proposal is a 'drop-in' application, seeking full planning approval for the development of 922 residential units and 232 sq.m of flexible commercial use (A1/A3/A4/B1/D1/D2) within Blocks B, C, F3, F4 and H of the mixed-use redevelopment Masterplan previously approved for the former Nestle Factory, as site approved in Hillingdon planning permission ref: 1331/APP/2017/1883.

9 The proposal would result in a uplift of 93 residential units compared with that previously approved, resulting in a total of 1,479 residential units across the entire masterplan area.

10 The proposal also involves a basement extension to Block B, design amendments to the Blocks B, C, F3, F4 and H, as well as associated landscaping, access, carparking and engineering works as required by the proposed changes.

Case history

11 In June 2018, planning permission (Hillingdon Reference: 1331.APP/2017/1883) was granted for the part demolition of the existing factory building and associated structures with redevelopment to provide 1,386 dwellings (Class C3), office, retail, community and leisure uses (Classes A1/A3/A4/B1/B8/D1/D2), 22,663 sq.m of commercial floorspace (Classes B1c/B2/B8), a data centre (Sui Generis), amenity and playspace, landscaping, access, service yards, car parking and other engineering works.

12 A separate section 73 variation application to the above permission is currently being determined by Hillingdon Council (Hillingdon reference: 1331/APP/2019/166). This proposes minor façade changes, the addition of two residential units in Block E, one residential unit in Block G, the addition of a number of balconies, the reorganisation of 8 residential units in Block G and increases to cycle storage capacity in Block D.

Strategic planning issues and relevant policies and guidance

13 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area comprises the Hillingdon Local Plan Part 1 – Strategic Policies (November 2012), The Hillingdon Local Plan Part 2 – Development Management Policies, Site Allocations and Designations (16 January 2020), The West London Waste Plan and the 2016 London Plan (Consolidated with Alterations since 2011).

14 The following are relevant material considerations:

- The National Planning Policy Framework;
- National Planning Practice Guidance;
- London Plan Intend to Publish version (December 2019), which should be taken into account on the basis explained in the NPPF;

15 The relevant issues and corresponding policies are as follows:

- Principle of development *London Plan;*
- Housing *London Plan; Affordable Housing and Viability SPG; Housing SPG; Housing Strategy*

- Urban Design *London Plan; Shaping Neighbourhoods: Character and Context SPG; Accessible London: Achieving an Inclusive Environment SPG; Shaping Neighbourhoods: Play and Informal Recreation SPG*
- Sustainable Development *London Plan; Sustainable Design & Construction SPG; Mayor's Environment Strategy;*
- Transport *London Plan; Mayor's Transport Strategy.*

Principle of development

16 The London Plan and the Mayor's Intend to Publish London Plan both identify the optimisation of land, including the development of brownfield sites, as a key part of the strategy for delivering additional homes in London. London Plan Policy 3.3 in Table 3.1 puts the minimum target for Hillingdon at 5,593 net additional homes for the period between 2015 and 2025. This 10-year target is substantially increased to 10,830 new homes for the period 2019-2029 in the Mayor's intend to publish London Plan.

17 The application site is situated in the Heathrow Opportunity Area which is identified as having the capacity to accommodate a minimum of 9,000 new homes and 12,000 new jobs in Policy 2.3 of the London Plan. This is substantially increased to targets of 13,000 new homes and 11,000 new jobs in Policy SD1 of the Mayor's intend to publish London Plan.

18 The scheme would deliver 922 new homes, representing an uplift of 93 additional homes compared with extant permission which exists for this portion of the Nestle Factory Masterplan, and resulting in the delivery of 1,479 homes across the entire Nestle Factory Masterplan area (as compared with 1,386 homes as presently approved).

Industrial land

19 London Plan Policy 2.17 requires boroughs to promote, manage and where appropriate protect strategic industrial land, and London Plan Policy 4.4 commits the Mayor to work with boroughs to adopt a rigorous approach to industrial land management, to ensure a sufficient stock of industrial land and premises is retained, and to plan, monitor and manage the release of surplus industrial land where it can contribute to strategic and local planning objectives, especially the provision of new housing. Draft London Plan Policy E5 confirms that non SIL uses within SIL should be refused unless there has been a strategically co-ordinated process of SIL consolidation carried out through a planning framework or Development Plan document review process (and adopted as policy in a Development Plan), or as part of a co-ordinated master-planning process in collaboration with the GLA.

20 The former Nestle Factory site had formerly been located within a wider 34 hectare expanse of employment land known as the 'Nestles Avenue Industrial Cluster', which is located south of the railway at Hayes and Harlington. All 34 hectares of this land had previously been subject to designation as a Strategic Industrial Location (SIL).

21 The principle of a residential-led mixed-use development across the Nestle Factory site was previously established by planning permission (Hillingdon Reference: 1331.APP/2017/1883) in 2018. Consideration of the extant permission for mixed use development across the Nestle Factory site had noted that Hillingdon Council and the GLA

had been engaged in a plan-led process of rebalancing a local surplus of employment land dating back to 2014. Since that time, the release of the SIL designation affecting the site has been formally reflected in the newly adopted Hillingdon Local Plan Part 2 – Development Management Policies, Site Allocations and Designations, adopted 16 January 2020, as well as the Mayor's intend to publish London Plan. On this basis, the principle of residential development on the site remains supported in accordance with considerations given to the parent planning approval as well as policies 2.17 and 4.4 of the London Plan and E5 of the Mayor's intend to publish London Plan.

22 Notwithstanding the above; in accordance with Policy E7 Part E of the draft London Plan the site's proximity to industrial uses must continue to ensure the efficient function, access, service arrangements and operation of the adjacent Industrial Land and ensure high residential quality for the proposed population is secured.

Housing

Affordable housing

23 London Plan Policies 3.11 and 3.12, intend to publish London Plan Policies H5 and H6, and the Mayor's Affordable Housing and Viability SPG set a strategic target of 50% affordable housing in all new developments. The Mayor's Affordable Housing and Viability SPG and Policy H6 of the draft London Plan set out the 'threshold approach' to planning applications whereby schemes that meet specific threshold of affordable housing by habitable room (in this case 35%) without public subsidy, and which meet the Mayor's preferred tenure mix, are eligible to follow the Fast-Track Route whereby viability information is not required and a late stage review would not be sought. The preferred tenure mix is outlined in Policy H7 of the draft London Plan as at least 30% low cost rent (social rent or affordable rent), at least 30% intermediate (London Living Rent or shared ownership) and the remaining 40% as determined by the local planning authority.

24 The application proposes 32% affordable housing (by unit); split 29% Affordable Rent, 59% Shared Ownership and 12% Discount Market Sale (DMS). A full accommodation schedule must be provided prior to consideration of the application at stage 2, which details the breakdown of accommodation by both habitable room and tenure.

25 The affordable housing offer and tenure split falls marginally short of the minimum requirements for the Fast Track Route, and therefore must follow the Viability Tested Route as outlined in policies H5 and H6 of the Intend to Publish London Plan. The applicant has submitted a financial viability appraisal (FVA). Detailed comments on the submitted FVA have been forwarded to the applicant under separate cover in this regard, and GLA officers will continue to robustly scrutinise the viability appraisal to ensure that the maximum amount of affordable housing is delivered. Both early and late stage review mechanisms must also be secured in accordance with the Mayor's Intend to Publish London Plan.

26 The affordability of the units must accord with the requirements of Policy H7 of the draft London Plan, the Mayor's Affordable Housing and Viability SPG and the London Plan Annual Monitoring Report. In this instance it is noted that the applicant is proposing a discount market sale (DMS) product within the intermediate component of the affordable housing offer. DMS is not one of the Mayor's preferred affordable housing products set out

within the Affordable Housing and Viability SPG, and would need to be carefully secured within the section 106 agreement to ensure it meets the relevant affordability criteria for intermediate ownership and that the discount is appropriately passed on to future 'eligible buyers' in perpetuity. GLA officers will work with the Council to agree affordability levels of all affordable tenures. A draft of the Section 106 agreement must be provided to the GLA for review at the earliest opportunity to ensure that the requisite review mechanisms have been applied (as required by Policy H5 of the intend to publish London Plan) and affordability and eligibility criteria comply with the London Plan, intend to publish London Plan and the Mayor's Affordable Homes Programme Funding Guidance.

Residential unit size mix

27 London Plan policies 3.8 and 3.11, as well as draft London Plan policy H12, encourage a choice of housing based on local needs with affordable family housing stated as a strategic priority. The scheme proposes a total of 922 units of which 104 (11%) are 3 bed units. This proportion increases to 16% (47 units) in the affordable housing portion of the scheme, and 38% in the affordable rent units.

28 The whilst the overall proportion of family sized units is low, the unit size mix is acceptable in this instance noting that family sized accommodation is concentrated within the affordable housing elements of the scheme.

Residential quality

29 London Plan Policy 3.5 and Policies D2 and D4 of the draft London Plan seek to ensure housing developments are of the highest quality internally, externally, and in relation to their context and to the wider environment. The Housing SPG and London Housing Design Guide build on this approach and provide further detailed guidance on key residential design standards.

30 The application proposes rearrangement of Block H to provide additional DMS units. At 37sqm, these are the minimum space standard dimension and must be designed to exemplary residential quality to maximise functionality. Floor to ceiling heights should be a minimum of 2.6 metres, and ideally greater in order to improve daylight, the storage, as well as making these dwellings feel more spacious.

31 In the blocks with additional height the applicant is providing a good amount of dual aspect units. Notwithstanding this, the applicant should investigate further options to improve the ratio of dual aspect units, including where these may be achievable through further design interventions to level 8 in block B1, and level 9 in block B6.

Children's playspace

32 London Plan Policy 3.6 and draft London Plan Policy S4 set out the expectation that housing proposals should make provision for play and informal recreation, based on the expected child population generated by the scheme and an assessment of future needs.

33 Using the methodology within the Mayor's Shaping Neighbourhoods: Play and Informal Recreation SPG, it is anticipated that there will be 145 children within the development based on current housing mix. The guidance sets a benchmark of 10 sq.m. of useable child playspace to be provided per child, with under-5 year olds playspace provided on-site as a minimum. As such the development should make provision for 1,453

sq.m. of playspace within the application site boundaries (dependent on unit size/tenure breakdown).

34 The precise quantum of play-space being provided within the red line boundary has not been identified in the application documents. Notwithstanding this, the planning statement provided with the application notes that the courtyard provides some capacity for 0-5 year old play space, with 5-11 age group play areas to be accommodated on the podium level, and 12+ age groups accommodated within the wider masterplan area. Full details on the quantum of play-space being provided within this application area must be confirmed prior to the return of the application at stage 2. In the event that the required quantum play-space is unable to be accommodated on site, suitable financial contribution towards the upgrade of play-space available in the surrounding area should be secured in the s106 agreement.

35 The quality of design and equipment provided in play areas must be secured by planning conditions. The applicant must demonstrate that all play-space is available to all children within the development and not segregated by tenure type, in accordance with Policy S4 of the draft London Plan. The ongoing availability of all play-space to all children in the development must be secured by appropriate conditions of approval.

Urban Design

36 The design principles of chapter seven in the London Plan and chapter three of the draft London Plan outline that all developments should achieve a high standard of design which responds to local character, enhances the public realm and provides architecture of the highest quality. In particular, Policy 7.5 of the London Plan and Policies D1 & D2 of the draft London Plan require architecture to make a positive contribution to a coherent public realm, streetscape and wider cityscape, incorporating the highest quality materials and design appropriate to the surrounding context.

37 The proposed scheme was previously subject to pre-application advice, and this has helped to inform the design approach to the proposal adopted by the applicant which is welcomed.

Site layout

38 The application proposes changes to the height and massing of various blocks across the site. No changes are proposed to the overall site layout since the previously approved masterplan application.

39 The shared amenity spaces would not be comprised with the addition of extra units, as they were previously over-provided and remain above the minimum requirements. The daylight/sunlight analysis provided demonstrates that the effect of the extra building height on shared amenity space is minimal. Careful consideration must be taken to provide high quality of design in these spaces and ensure maximum usability during all parts of the day/year.

Height, scale and massing

40 The scheme incorporates changes to the height and massing of various blocks across the site, when compared to the extant masterplan permission. The impact of this

additional height has been carefully distributed across the site and is supported.

Fire statement

41 In line with policy D12 of the Mayor's intend to publish London Plan, development proposals must achieve the highest standards of fire safety and ensure that they: are designed to incorporate appropriate features which reduce the risk to life in the event of a fire; are constructed in an appropriate way to minimise the risk of fire spread; provide suitable and convenient means of escape for all building users; adopt a robust strategy for evacuation which all building users can have confidence in and provide suitable access and equipment for firefighting which is appropriate for the size and use of the development.

42 The applicant is required to submit a Fire Statement by a third party suitably qualified assessor. The statement should detail how the development proposal will function in terms of: the building's construction; the means of escape; access for fire service personnel and equipment, and the ongoing maintenance and monitoring of these how provision will be made within the site to enable fire appliances to gain access to the building. The Fire Statement should be submitted prior to determination.

Sustainable Development

Energy

43 The Energy Hierarchy has been followed and the proposed energy strategy is broadly supported; however, further revisions and information are required before the proposals can be considered acceptable to comply with Policies 5.2 and 5.13 of the London Plan as well as Policies SI2 and SI13 of the draft London Plan. Detailed comments have been forwarded to the LPA and the applicant under separate cover in this regard.

44 The residential carbon dioxide savings exceed the target set within Policy 5.2 of the London Plan. Notwithstanding this, the applicant is encouraged to investigate low carbon alternatives for the development. Revised carbon emissions should be submitted for all stages of the energy hierarchy.

45 Non-residential carbon dioxide savings fall short of the on-site target within Policy 5.2 of the London Plan. The applicant has confirmed the amount that will be paid into the borough's offset fund, equivalent to 20 tonnes of carbon dioxide per annum. Evidence of correspondence with the borough confirming the appropriate contribution amount to the borough's offset fund should be provided, and contributions must be secured in the s106 agreement.

46 The applicant has provided a commitment to ensure that the development is designed to allow future connection to a district heating network. This must include drawings demonstrating how the site is to be future-proofed for a connection to a district heating network in future. A drawing showing the route of the heat network linking all buildings on the site should be provided alongside a drawing indicating the floor area, internal layout and location of the energy centre.

47 The applicant is proposing a Combined Heat and Power (CHP) engine, which is larger than the previously approved energy strategy (increasing from 360kWe to 456kWe). Alternative low carbon heating methods should be investigated, and the applicant is

required to justify the inclusion of CHP.

48 The applicant is proposing to install 378 kWp of Photovoltaic (PV) panels equating to circa 287,280 kWh of electricity generation. A detailed roof layout should be provided demonstrating that the roof's potential for a PV installation has been maximised. The on-site savings from renewable energy technologies should be maximised regardless of the London Plan targets having been met.

Flood risk and drainage

49 The proposal represents alterations to the form of buildings previously consented under a masterplan application (LPA Ref: 1331/APP/2017/1883). The proposed changes do not affect the flood risk and drainage proposals considered in the previous application and are acceptable. The surface water drainage strategy remains compliant with Policy 5.13 of the London Plan and Policy SI.13 of the draft London Plan. Conditions of approval should be secured to ensure both domestic and non-domestic water consumption complies with the requirements of Policies 5.15 of the London Plan and SI.5 of the draft London Plan.

Transport

Cycling

50 The importance of prioritising cycling has increased considerably since the extant approval and development proposals must now be viewed within the context of the Healthy Streets approach and Vision Zero objectives outlined in Policy T2 of the draft London Plan. Developments must contribute to the delivery of the London Plan mode share targets, which seeks 80% of all trips in London being made on foot, cycle or public transport by 2041 through the de-prioritisation of the car and reduced dependency upon it. In support of these objectives, Policy T5 of the draft London Plan stipulates that developments should facilitate and encourage cycling through the implementation of quality cycle parking.

51 The quality of the proposed cycle parking does not currently comply with the London Cycle Design Standards (LCDS) as required by policy T5 of the intend to publish London Plan, and should be amended. A schedule and detailed plans of all cycle parking facilities should be provided to confirm compliance with the LCDS requirements.

Parking

52 The proposals are to reconfigure the basement in order to accommodate increased car parking at the same ratio as per the previously consented development (55 new spaces). This approach is not supported and the level of parking should be reduced to comply with the standards expressed in Policy T6 of the intend to publish London Plan (0.5 spaces or less per dwelling). The proposed motorcycle parking is mostly inaccessible should therefore be re-provided and relocated to ground floor level with adequate access.

53 Whilst the principle of an enlarged basement can be supported, this opportunity should be used to improve the layout and circulation of the car parking, facilitate the relocation of on-street parking and to accommodate exemplar cycle parking design. This would improve the urban realm around the development, reduce the potential of pedestrian vehicular conflict and improve the attractiveness of non-car modes of travel.

Servicing

54 An amended Transport Assessment should be provided and secured, which addresses residential servicing. The previously agreed mitigation measures indicated in the Transport Assessment, must also be secured as part of any approval in accordance with policy T9 of the draft London Plan.

55 In addition, a Delivery & Servicing Plan should be provided to reflect the increasing trends and activities associated with home deliveries. This should detail arrangements for managing these as required by policy T7 of the draft London Plan, any initiatives and requirements must then be secured as part of the s106 agreement.

Local planning authority's position

56 Council Officer's from the London Borough of Hillingdon are currently assessing the scheme. The proposal is intended to be presented to Council Committee in February 2020.

Legal considerations

57 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008, the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application, or issue a direction under Article 7 of the Order that he is to act as the local planning authority for the purpose of determining the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

58 There are no financial considerations at this stage.

Conclusion

59 London Plan policies on principle of development, housing, urban design, sustainable development and transport are relevant to this application. The below issues must be addressed to ensure the proposal complies with the London Plan:

- **Principle:** The optimisation of development on this site in the Heathrow Opportunity Area, to deliver 922 new homes and 232 sq.m of flexible commercial floorspace, is strongly supported by Policies 3.3 of the London Plan and H1 of the intend to publish London Plan. The development must continue to ensure the efficient function, access, service arrangements and operation of the adjacent Industrial Land and high residential quality for the proposed population is secured.

- **Housing:** 922 residential units, 32% affordable housing by unit must follow a viability tested route as outlined in policies H5 and H6 of the intend to publish London Plan. GLA officers will continue to robustly scrutinise the viability appraisal to ensure that the maximum amount of affordable housing is delivered. Both early and late stage review mechanisms must also be secured in accordance with the draft London Plan.
- **Urban design:** Scheme proposes changes to the height and massing of various blocks across the site, and no changes are proposed to the overall site layout since the previously approved masterplan. Height, massing and layout are supported, subject to demonstration that the number of dual aspect units has been maximised.
- **Sustainable Development:** The Energy Hierarchy has been followed and the proposed energy strategy is broadly supported; however, further revisions and information are required before the proposals can be considered acceptable to comply with Policies 5.2 and 5.13 of the London Plan as well as Policies SI2 and SI13 of the draft London Plan.
- **Transport:** The design of the proposed cycle parking does not comply with the London Cycle Design Standards (LCDS) and should be amended. the level of car parking should be reduced to comply with the standards expressed in Policy T6 of the intend to publish London Plan. Amended Transport Assessment, Delivery and Servicing plans should be provided and secured by conditions and s106 agreement obligations.

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